

BC724097 BC724097

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-11

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AGREEMENT

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Case Number: BC724097 Hearing Date: September 11, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARIA ALEJANDRINA FARIAS CHAVEZ,

Plaintiff,

vs.

RACHEL

SIERRA WEST, et al.,

Defendants.

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CASE NO: BC724097

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AGREEMENT

Dept.

A

DATE:

September 11, 2026

TIME:

8:30 A.M.

Complaint:

10/05/2018

Disposed:

12/07/2022

MOVING

PARTY: Plaintiff Maria

Alejandrina Farias Chavez

RESPONDING

PARTY: None

This was a motor vehicle collision action. Plaintiff Maria Alejandrina Farias Chavez ("Plaintiff") alleged that defendants Rachel Sierra West and Tom Mebane III (collectively, "Defendants") negligently owned, operated, and entrusted their vehicle so as to collide with Plaintiff's vehicle, causing Plaintiff personal injury and property damage. On August 24, 2022, the parties filed a notice of settlement of the entire case.

Plaintiff moves to enforce the settlement agreement against Defendants. Plaintiff contends that Defendants ceased making payments required under the settlement agreement. Defendants do not oppose this motion.

Code of Civil Procedure § 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

The parties filed a notice of settlement of the entire case on August 24, 2022. The court thereafter set an Order to Show Cause re Dismissal. Prior to that hearing, Plaintiff filed a request for dismissal with prejudice on December 6, 2022. As a result, the hearing came off calendar. There is no indication in any minute order or in any document filed with the court that the parties requested that the court dismiss the case without prejudice, or that the court retain jurisdiction to enforce the settlement pursuant to Code of Civil Procedure § 664.6. The statute was substantially similar in all material respects when the request for dismissal was filed.

The court therefore finds that it lacks

jurisdiction to grant the instant motion.

Based on the
foregoing, the court DENIES Plaintiff's motion to enforce the settlement
agreement against Defendants. Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: September 11, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court